

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: Ireland

Organization or entity responsible for the preparation of the report: Department of Education.

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention²**

Is your country a State Party to the Convention?

☐ Yes

☐ ✓ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ ✓ No, not considering ratification in the near future. Please explain why:

Ireland is committed in general to the principles of equality of educational opportunity contained in the Convention. For example, the Equal Status Act, 2000 prohibits an educational institution from discriminating in relation to, among other things, admission to an establishment or access to any course in that establishment.

Ireland's Constitution and Education Act 1998 also pertain to Education for all citizens.

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☐ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes

☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

Educational Act 1998

An Act to make provisions in the interest of the common good for the education of Every Person in the State, including any person with disabilities or who has other special educational needs, and to provide generally for primary, post-primary, adult and continuing education and vocational education and training; to ensure that the education system is accountable to students, their parents and the State for the education provided, respects the diversity of values, beliefs, languages and traditions in Irish society and is conducted in the spirit of partnership between schools, patrons, students, parents, teachers and other school staff, the community served by the school and the State; to provide for the recognition and funding of schools and their management through boards of management; to provide for an inspectorate of schools, to provide for the role and responsibilities of principals and teachers; to establish the national council for curriculum and assessment and to make provisions for it, and to provide for related matters. [23 December, 1998]

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

The Primary Language Curriculum (PLC) recognises the linguistic diversity present in modern day Irish classrooms and builds on the language knowledge and experiences that children bring to school. It seeks to broaden children's understanding of the world through a rich variety of language experiences and through fostering an awareness and appreciation of other languages and cultures in an enriching learning environment.

The National Strategy on Education for Sustainable Development 2014-2020 aims to contribute to the UN Sustainable Development Goals Target 4.7 to ensure that by 2030 "By 2030 *all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development (United Nations, 2015)*".

Sustainable Development themes and principles are integrated across school curricula. Of particular note is the recently introduced Politics and Society curriculum at senior cycle, and the Active Citizenship strand of this programme which explicitly includes issues of cultural diversity and human rights.

Social, Environmental and Scientific Education (SESE) at primary school level provides opportunities for the child to explore, investigate and develop an understanding of the natural, human, social and cultural dimensions of local and wider environments, to learn and practice a wide range of skills, and to acquire open, critical and responsible attitudes. SESE enables the child to live as an informed and caring member of local and wider communities. The short course in Civic, Social and Political Education (CSPE) at Junior Cycle

aims to inform, inspire, empower and enable young people to participate as active citizens in contemporary society at local, national and global levels, based on an understanding of human rights and social responsibilities.

In the SPHE short course at Junior Cycle, the student participates in informed discussions about the impact of physical, emotional, psychological and social development in adolescence and learns to recognise how sexuality and gender identity is part of what it means to be human and has biological, psychological, cultural, social and spiritual dimensions in order to appreciate and respect how diverse values, beliefs and traditions have contributed to the communities and culture in which she/he lives.

Strand 1: Senior Cycle Politics and Society

A new subject for Leaving Certificate, Politics and Society, was introduced in September 2016. Politics and Society aims to develop the student's ability to be a reflective and active citizen, in a way that is informed by the insights and skills of social and political science.

The Politics and Society specification offers numerous opportunities for students to learn about and engage on the issue of respect for cultural diversity and the cultural rights of each person.

Strand 2: Active Citizenship. This strand deals with a range of skills which are foundational to active and reflective citizenship. These include the skills of effectively contributing to communities and the skills of deliberating and coming to decisions when working with others. In particular Topic 3 of Strand 2: 'Effectively Contributing to Communities', students learn about becoming involved in, or starting an initiative, group or organisation. Students should be able to make contact with initiatives, groups or organisations that are involved in politics, human rights, cultural diversity or sustainable development. Students also learn of the range of means of taking action at local, national or international level. Here students undertake a form of action agreed with an initiative, group or organisation that is involved in politics, human rights, cultural diversity or sustainable development or develop a new initiative, group or organisation working in one of these areas.

Strand 3: Human Rights and Responsibilities. An understanding of and a respect for human rights and responsibilities and for human dignity is a key objective of Politics and Society. Strand 3 addresses this objective directly. In particular 'Topic 5: Human Rights and Responsibilities In Ireland' – here students learn about Human Rights Principles and students should be able to, among others, distinguish between economic, social and cultural rights. Topic 6: 'Human Rights and Responsibilities in Europe and the Wider World' broadens the focus to look at human rights and responsibilities in a European and wider-world context. In topic 6.3 students learn about international cooperation and human rights. Students should be able to identify what it means for states to agree to implement economic, social and cultural rights within the framework of international cooperation, and identify the main elements of the UN Declaration on the Right to Development.

Strand 4: Globalisation and localisation. This strand builds on the learners' understanding of diversity and of cultural difference developed in strand 3. It provides them with an opportunity to think about the ways in which other cultures are characterised within their own culture, and to discuss the appropriate relationship between different cultures. In Topic 7: Globalisation and Identity. Students learn about the diversity of the European Union and examine the significance of ethnic and cultural diversity within the European Union including: ethnic diversity within states and within the European Union, language diversity, and religious diversity.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of

the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☐ ✓ Constitutional laws and/or legislation prohibit discrimination in education
- ☐ Regulations prohibit discrimination in education
- ☐ Policies and programmes aim to eliminate and prevent discrimination in education
- ☐ Access to justice in case of violations of the right to non-discrimination in education
- ☐ ✓ Combatting discrimination in terms of curriculum
- ☐ Other:

INTERCULTURAL GUIDELINES (NCCA 2005/06)

Intercultural education guidelines were provided to support the Primary and post primary School Curriculum and identify the ways in which intercultural education permeates the curriculum. These guidelines contribute to the development of Ireland as an intercultural society based on a shared sense that language, culture and ethnic diversity is valuable. They aim to contribute to the development of a shared ability and sense of responsibility to protect for each other the right to be different and to live free from discrimination.

National Council for Curriculum and Assessment (NCCA) Audit

In 2019 the National Council for Curriculum and Assessment (NCCA) undertook an audit on the place of Traveller history and culture in the curriculum, from early years to senior cycle in order to identify current opportunities for children and young people to encounter and learn about aspects of Traveller culture and history. In addition, the audit aimed to identify future possibilities in this regard as curricula are reviewed and developed on a broader scale and in a wider context.

The NCCA has commenced this work with the appointment of a full-time NCCA Education Officer in September, 2020. Meanwhile other strands of work are being progressed through commissioning and liaison with relevant interests and bodies.

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

Admissions to Schools Act 2018

The Education (Admission to Schools) Act 2018 was signed into law on the 18th July 2018. The Act creates a more parent-friendly, equitable and consistent approach to how school admissions policies operate for all primary and post primary schools.

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

A number of sections of the act have been operational since October 2018. These include section 64 which prohibits fees relating to admissions in non-fee charging schools, and section 11 which removes, in the case of recognised denominational primary schools, the existing provision in the Equal Status Act 2000, which permitted such schools to use religion as a selection criterion in school admissions. Under this provision, there is a protection to ensure that a child of a minority faith can still access a school of their faith.

In January 2020 a number of new sections were commenced, and these became operational in February 2020. Under these provisions every recognised school is required to draft a new school admission policy in accordance with the act's requirements following consultation with the patron, the staff of the school and parents of current pupils. This policy will come into effect in respect of applications made for admission to schools for the 2021/2022 school year onwards.

Newly revised school admission policies under the commenced provisions of the act will state that the school will admit all applicants, where the school has places available and is not oversubscribed. They will also place a ban on waiting lists, apart from waiting lists maintained for the school year concerned.

The new arrangements also introduce an annual admission notice to be published each year which will contain important information for parents regarding the application process, including key dates and the number of places available and will ensure a consistent and transparent approach to school admission processes.

The Act will provide new powers for the National Council for Special Education (NCSE) and TUSLA, the Child and Family Agency, to designate a school place for those children who cannot get a school place.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☐ Regulations ensure equal access to all levels and types of education
- ☐ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- ☒ Providing financial incentives and fellowships
- ☐ Providing auxiliary assistance

⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

- ☐ ✓ Providing positive or affirmative action measures
- ☐ ✓ Ensuring inclusion in mainstream schools for all learners
- ☐ ✓ Training teachers on inclusive education
- ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)
- ☐ ✓ Providing re-entry programmes for young mothers
- ☐ ✓ Eliminating all barriers for pregnant girls or young mothers in education
- ☐ Other:
- ☐ Adapting education infrastructure
- ☐ Adapting curricula and methods
- ☐ ✓ Providing language classes to newcomers (e.g. refugees)
- ☐ ✓ Eliminating administrative barriers to education⁷
- ☐ ✓ Providing flexible learning pathways
- ☐ ✓ Valuing diversity in schools
- ☐ ✓ Combatting stereotyping and stigmatisation

Education system

The education system in Ireland is underpinned by a policy of inclusion, where children, including Traveller and migrant children attend mainstream schools and additional supports are allocated on the basis of identified additional educational need.

Inclusive environments in schools

The Department's Action Plan on Bullying sets out a comprehensive approach to tackling all forms of bullying, including identity or race based bullying, and to promoting positive, inclusive environments in all schools. The Anti-Bullying procedures for schools include a number of specific measures in respect of identity-based bullying including a requirement on all schools to have in place education and prevention strategies that explicitly deal with identity-based bullying.

The Professional Development Service for Teachers (PDST) is the country's largest single support service offering professional learning opportunities to teachers and school leaders in a range of pedagogical, curricular and educational areas. At primary level over the last number of years, PDST have provided full day Continuing Professional Development (CPD) to teachers in relation to Team Teaching and Inclusion of children with Special Educational Needs in the mainstream classroom. This CPD is based on DES Circular 0013/2017. SEN and mainstream teachers are supported to deepen their understanding of inclusive teaching, learning and assessment practices through the lens of evidenced based team teaching models. These models showcase how individual student needs can be met in the collective setting of the classroom.

It is proposed to run these seminars countrywide in 2021 once face-to-face CPD can safely resume. At post-primary level, PDST propose to provide CPD to mainstream and Special Education teachers in relation to developing a shared understanding of the rationale and evidence base for inclusion in effectively supporting students with Special Educational Needs in the mainstream PP classroom setting. Teachers will also explore and enhance their professional understanding of the staged approach of support and the guiding principles of the new allocation model for SEN based on the DES Circular 0014/2017. The seminar will also enable teachers to share best practice, resources and assessment practices in relation to inclusion and models of team teaching as well as developing an action plan for inclusion.

It is proposed to run these seminars countrywide in 2021 once face-to-face CPD can safely resume.

In School support is also provided by PDST on an ongoing basis at both primary and post primary levels in relation to supporting inclusion of students with SEN in mainstream classrooms.

The PDST delivered CPD to all primary school teachers in Ireland during 2019/2020 in relation to implementation of the new Primary Language Curriculum (PLC), (2019). The PLC is an inclusive, child-centred curriculum which outlines a new approach to language teaching and learning in both English and Irish, designed for use in all school settings in Ireland. The PLC supports teachers in creating a child-centred environment where playful and engaging learning experiences are active, interactive and

enjoyable for all children. It also supports teachers in meeting children at their own level and provides teacher autonomy in allowing for students to progress at their own rate.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

The PDST Primary and Post Primary STEM teams have been involved in an initiative with UCD during 2019/2020 to promote STEM for girls which is designed to promote STEM disciplines among female participants.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

The minimum age for getting married in Ireland is 18 years of age. Couples of the same or opposite sex can get married. In addition you must have the capacity to marry. That is, you must freely consent to the marriage and have the capacity to understand what marriage means. Only a Court Exemption order permits persons under the age of 18 to get married.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

☐ Pre-primary education is free of charge for all: Please provide the duration:

The Early Childhood Care and Education (ECCE) Scheme provides early childhood care and education for children of pre-school age. Children can start ECCE when they are 2 years and 8

⁸ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

months of age and continue until they transfer to primary school(provided that they are not older than 5 years and 6 months at the end of the pre-school year)

The State pays participating playschools and daycare services a set amount per child to offer the ECCE service. In return, participating centres and playschools provide a pre-school service free of charge within the qualifying age range. The service is for a set number of hours over a set period of weeks.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☐ ✓ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Enrolment age is from the age of 4 years onwards. All children must be enrolled by the age of 6. Primary cycle is an 8 year duration.

- Is primary education available free of charge to all?

☐ ✓ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Children starting schools can attend national schools which are State-aided and do not charge fees. Private schools are not state funded.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

• Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☐ ☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Children are entitled to free secondary education. Most schools are funded by the state and most children attend these schools.

Most scheme to assist with financial costs are for students who are depended on social welfare payment or coming from disadvantaged living. These include but are not limited to the following:

Back to School Clothing and Footwear Allowance.

Funding under the Free Education Scheme to help with cost of supplies.

Textbook Rental Schemes.

Remote Areas Boarding Grants.

Assistive Technology grant for students with disabilities.

Students with parents who have fulltime medical cards do not pay examination fees.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ ☒ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Students can attend secondary school from the age of 12 provided they reach that age on the 1st January in the first year of attendance.

Children can leave school at the age of 16 or on completion of 3 years post primary education whichever is later.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

Protection of Young Persons Employment act 1996. Children can work, but the types of work and hours are restricted. [Link to Act](#)

Children aged 14 or over can do light work during the summer holidays only (does not include during school term time) for no more than seven hours a day or 35 hours a week, up to 40 hours a week if it's an approved work or an educational experience program approved by the Minister for Education, the Minister for Enterprise, Trade and Employment or Intreo.

Children must have at least 21 days off during this time before school starts again.

Those over 15 but under 16, may do eight hours of light work a week during the school year. This should be as part of an approved work or educational experience.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☐ ✓ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☐ ✓ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☐ ✓ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training
- ☐ Other:

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

The Equal Status Acts 2000-2015 ('ESAs') prohibit discrimination in the provision of goods and services, accommodation and education. They cover the nine grounds of gender, marital status, family status, age disability, sexual orientation, race, religion, and membership of the Traveler Community or on the housing assistance ground (in cases concerning accommodation only). Discriminatory advertising is also prohibited.

The Acts prohibit discrimination subject to some exemptions, in access to and use of goods and service, including indirect discrimination and discrimination by association, sexual harassment and harassment, and victimisation. The Acts allow positive action to promote equality for disadvantaged persons or to cater for the special needs of persons.

Anything done under Irish or EU law is not discrimination under the Acts.

The Equal Status Acts apply to all educational institutions including primary schools, secondary schools, universities and vocational training courses. The Equal Status Acts 2000-2015 make prohibit discrimination in relation to:

- Admissions
- Access to any course, facility or benefit they provide
- Any other term or condition of participation
- The expulsion of a student, or any other sanction against a student

However, there are situations under the ESA where people can be treated differently lawfully for example, you can have all boys or girl's schools. Also, primary and secondary schools can give preference to students from one particular religion and refuse to admit someone of a different religion, so long as they prove that this is essential to keep the religious ethos of the school.

The Acts require that schools and educational institutions do not discriminate across the nine grounds (although there are exemptions in relation to gender and religion).

They must reasonably accommodate students with disabilities. Harassment and sexual harassment is prohibited in education institutions.

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

The Equal Status Act places certain requirements on educational institutions in relation to how they deliver their services.

The Equal Status Acts specify four areas in which an education institution must not discriminate:

- The admission of a student, including the terms or conditions of the admission of a student,
- The access of a student to a course, facility or benefit provided by the educational institution,
- Any other term or condition of participation in the educational institution and,
- The expulsion of a student or any other sanction.

The Acts require that schools and educational institutions do not discriminate across the nine grounds (although there are exemptions in relation to gender and religion).

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☐ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:’

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- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Under the Department’s free fees schemes, the Exchequer provides funding toward the tuition fee costs of eligible undergraduate Higher Education students. Students pay a student contribution of €3,000 per annum which can be paid in instalments. The state currently pays the contribution in full or part for an estimated 44 per cent of students’ eligible for free fees funding through student support.

Higher Education Institutions are autonomous bodies and the level of fee payable by students who do not meet the requirements of the free fees scheme is a matter for the relevant institution to determine in accordance with their own criteria.

The development of a sustainable funding model for higher education is essential in light of the centrality of higher education. The future development of Ireland as an inclusive society and a knowledge economy against the backdrop of rapid technological change. In that context, a comprehensive economic evaluation of the funding options presented in the Report of the Expert Group on Future Funding for Higher Education (2016) is underway supported under the European Commission DG Reform Programme.

Ireland is working closely with the European Commission and the independently appointed consultants. The key aim of this review is to investigate methods of increasing the sustainability of higher and further education provision in Ireland, including an examination of the funding options including the existing student contribution and other supports.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☐ ✓ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ ✓ Provision of literacy programmes
- ☐ ✓ Provision of appropriate learning and life-skills programmes
- ☐ ✓ Provision of free of charge learning opportunities
- ☐ ✓ Provision of flexible learning pathways
- ☐ ✓ Provision of professional training and qualifications
- ☐ ✓ Other:

Specialist Training Provision

- Please elaborate further on the measures taken:

Fostering Inclusion is one of the three core pillars around which the Further Education and Training Strategy (FET) 2020-2024 is built. The FET sector is committed to increasing levels of inclusion through the provision of high quality, more accessible and flexible education and training programmes and supports suited to the identified needs of individuals, with the aim of enabling every citizen to participate fully in society.

As part of the annual FET service planning process that takes place between SOLAS, the Further Education and Training Authority of Ireland, and the 16 Education and Training Boards (ETBs), ETBs are required to consider the needs of identified priority cohorts in their planning and delivery of FET provision and to provide details on existing and new initiatives to address barriers to FET. Cohorts include long term unemployed, young people, apprentices, people with disabilities, members of the Traveller and Roma communities, migrants.

SOLAS, Education and Training Boards Ireland (ETBI), and the 16 ETBs across the country have progressed a series of actions to support the goal of Fostering Inclusion through the development and roll-out of a series of good practice guidelines to promote inclusion throughout FET. This includes the development of a conceptual framework for Universal Design for Learning (UDL) for the FET Sector. This approach aims to reduce obstacles to learning by taking into account the needs of learners of diverse backgrounds and abilities. Once in place, this will help all learners in FET, whatever their particular needs, and will make FET as widely accessible as possible.

To aid entry and progression and ensure learner needs are met there is a dedicated Adult Education Guidance Service in each ETB that provides guidance to FET learners and potential learners before, during and after FET training. This service is free of charge, confidential and open to everyone. Guidance is also provided to apprentices and trainees through the training centre

network. In addition, the Guidance, Counselling and Psychological Service in Youthreach and Community Training Centres provides supports for young people on these programmes.

In response to the Covid-19 pandemic provision across the FET sector moved almost overnight to online/blended delivery. This has posed unprecedented challenges to the sector, both for teaching and for learning. In particular this move has resulted in many learners requiring access to ICT devices to participate fully in FET learning opportunities. To reduce the impact and mitigate against the potential educational disadvantage that could arise from the lack of access to ICT devices, the Department of Further and Higher Education Research Innovation and Science (DFHERIS) with SOLAS, have provided €5M in funding for ICT devices for FET learners.

The shift to online/blended delivery, can also potentially have the beneficial outcome of making lifelong learning more easily and widely accessible. To build upon this potential and ensure inclusivity a range of actions are in place across the education and training system to support the acquisition of enhanced digital skills and to increase the use of digital technologies in teaching and learning. By the end of 2024 a digitally transformed FET system will offer a large portfolio of flexible, online and blended opportunities.

Provision of education for persons who have not received or completed the whole period of their primary education:

The Youthreach programme is part of a national programme of second-chance education and training. The Youthreach programme is delivered in two settings, Youthreach Centres and Community Training Centres (CTCs). Youthreach provides two years integrated education, training and work experience for unemployed early school leavers without any qualifications or vocational training who are between 16 and 20 years of age. Youthreach leads to awards typically at NFQ levels 3 & 4/EFQ Levels 2 & 3. The Youthreach programmes has a strong emphasis on personal development, on basic skills training including the core skills of literacy/numeracy, communications and IT, along with a choice of vocational options and a work experience programme.

Provision of literacy programmes:

Adult Literacy programmes are provided to people who want to improve their communication skills in the areas of reading, writing, numeracy and information technology with the aim of enhancing learners' participation in personal, social and economic life. The target cohort are those adults with primary education or less and whose literacy and numeracy skills do not match NFQ level 3/EFQ level 2. Adults with upper second level education whose literacy and numeracy skills are less than or equivalent to NFQ level 3/EFQ level 2 may also be provided for. Programmes are typically delivered for 2-4 hours per week, are delivered either on a group or an individual basis, and are generally at NFQ level 1 & 2/EFQ level 1.

Adult Literacy programmes also include:

- The Intensive Tuition in Adult Basic Education (ITABE), a project aimed at delivering a model of tuition in adult literacy and basic education for adults who are educationally disadvantaged;
- English Speakers of Other Languages (ESOL) courses designed to meet the day to day, social, cultural, and work-related language needs of new community members in Ireland, and
- A distance learning service, Learn with NALA, for learners with unmet literacy and numeracy needs, provided by the National Adult Literacy Agency (NALA).

Provision of appropriate learning and life-skills programmes:

Provision is available nationwide on both a full and part-time basis including evenings and weekends, to suit the lives of learners of all ages and from all backgrounds. FET is delivered in a wide range of physical settings including Post-Leaving Certificate (PLC) and Further Education Colleges, Training Centres, Youthreach and adult education centres, through community and

voluntary groups, commercial training providers and in workplaces. FET also provides flexible online and blended learning opportunities.

FET provision includes both labour market focused programmes and programmes with a strong social inclusion dimension and offers high quality, accessible and flexible education and training programmes and supports suited to the identified needs of individuals, with the aim of enabling every citizen to participate fully in society

Lifelong learning can comprise formal, non-formal and informal learning. Community education providers collaborate with the Education and Training Boards (ETBs) to provide upskilling and lifelong learning opportunities for people who are least likely to participate in education or those with few or no qualifications. Generally developed in local community projects and centres, it focuses on those who have not been in employment or education for a long-time and has an inclusive and participative approach.

Provision of free of charge learning opportunities:

FET provision is largely free or heavily subsidised and offers a broad range of courses and programmes at levels 1-6 of the NFQ providing learning and upskilling opportunities for around 320,000 beneficiaries each year. The only fees are PLC fees which are a nominal €200 per student (not including those entitled to a medical card or SUSI grant). About 40% of students pay the fee. Fees are collected at the start of the academic year. Apprentices are paid an allowance equivalent to their on-the-job wages for periods spent in education and training institutions. In addition, unemployed participants on training courses are paid a training allowance by ETBs based on their DEASP payment. In addition, accommodation, meal and travel allowances are paid to learners to assist them with the cost of actual attendance on some courses.

Flexible learning pathways:

FET provides a diverse range of programmes and supports designed to meet the needs of individuals at different stages of the learning pathway. Courses focused on foundation or transversal skills development, including literacy and numeracy and digital skills, build the core capabilities that allow participants to move on to more advanced learning opportunities. A range of programmes are focused more formally on facilitating pathways to other education and training opportunities and often bridge the gap between foundational learning and accessing vocationally focused programmes. These vocational programmes focus on providing skills that enable direct progression to the workplace, while also enabling pathways into higher education. Vocational programmes typically have a strong work-based component.

Specialist Training Providers (STPs)

STPs deliver a range of flexible training programmes for people with disabilities. Courses are generally one to two years in duration, are delivered all year round and lead to accreditation at levels 1-6 on the NFQ. Course examples include ICT and vocational multi-skills. Specialist vocational training can provide a number of enhanced services for its learners including additional training duration; adapted equipment; transport arrangements; enhanced programme content which may be required for a person with a disability to achieve their potential. An enhanced trainer-learner ratio is available on these programmes.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☐ ✓ Establishment of minimum norms and standards in education
- ☐ ✓ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☐ ✓ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☐ ✓ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☐ ✓ Initial training and continuous professional development is provided
- ☐ ✓ Minimum standards and qualifications are required for the teaching profession
- ☐ ✓ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ ✓ Performance monitoring systems
- ☐ ✓ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☐ ✓ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☐ ✓ Curriculum includes human rights education

☐ ✓ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☐ No ☐

- Please provide a brief description:

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☐ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

¹² Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

¹³ See: Article/Paragraph 1(1).

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☐ ✓ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ ✓ Curriculum is adapted to national minority needs
- ☐ ✓ Teachers are trained to adapt to national minority needs
- ☐ Other:

- Please provide a brief description of the provisions:

Traveller Education Policy

A key objective of Traveller education policy in recent years has been the phasing out of segregated Traveller provision and the inclusion of Traveller children and young people in mainstream education. Funding for segregated Traveller provision has been incorporated into overall school and other funding streams in order to provide supports for Traveller pupils in mainstream schools.

The Department is engaging in number of initiatives across the sector with a view to improving educational outcomes for Travellers and Roma. The National Traveller and Roma Inclusion Strategy (NTRIS), launched by the Department of Justice and Equality in June 2017 provides the framework and strategic direction for interventions across a range of Government Departments to support the additional needs of the Traveller and Roma communities in Ireland. The Department of Education participates in the Steering Group which was established to oversee the implementation of over 31 education actions of NTRIS.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

The education system in Ireland is underpinned by a policy of inclusion, where children, including Traveller and migrant children attend mainstream schools and additional supports are allocated on the basis of identified additional educational need.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ ✓ Inclusion in mainstream education
- ☐ Provision of language courses
- ☒ ✓ Specific training for educational staff
- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programs
- ☐ Financial support
- ☐ Other innovative measures:

Mainstream policy

The education system in Ireland is underpinned by a policy of inclusion, where children, including Traveller and migrant children attend mainstream schools and additional supports are allocated on the basis of identified additional educational need.

All immigrant children, including children of asylum seekers, refugees, migrant workers and unaccompanied minors can access pre-school, first and second level education in a manner similar to Irish nationals, until they have reached the age of 18 years.

The National Migrant Integration Strategy (MIS), published in 2017, is a whole-of-Government approach involving actions by all Departments and relevant Agencies. The education actions outlined in the Migration Integration Strategy 2017-20, focuses on enabling students to experience an education respectful of diversity while assisting education providers to ensure that integration

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

becomes the norm within an intercultural learning environment. The Department of Education participates in the National Steering Group which oversees implementation of Ireland's National Migrant Integration Strategy.

Language supports

The model of allocation of special education teacher allocations provides all schools with a baseline teaching allocation to assist current and future pupils who have learning and literacy difficulties, including those arising from English Additional Language (EAL) needs. Where schools can demonstrate that they have high concentrations of pupils requiring EAL they can apply for an additional allocation.

The Primary Language Curriculum (PLC) supports teaching and learning in English and Irish to children of all abilities in all school contexts including children for whom English is an additional language (EAL). The PLC was introduced from junior infants to 2nd class on a phased basis from September 2016 and was launched for 3rd class to 6th class in September 2019 in conjunction with a 3 year programme of sustained support for teachers provided by the Professional Development Service for Teachers (PDST). This is an integrated curriculum that makes connections across and within languages and that seeks to support the transfer of skills between languages.

Please briefly elaborate further on the measures taken:

SPHE at primary level plays an important role in developing an understanding of the democratic way of life and individual and group rights and responsibilities. It provides opportunities for children to learn about, and actively participate in, the various communities to which they belong and to develop a sense of a shared commitment. It can also help them to value and take pride in their national, European and global identities and come to an understanding of what it means to be a citizen in the widest sense. A respect for and an appreciation of human and cultural diversity can and should be promoted at every level of the primary school. Through SPHE children can become aware of some of the prejudices and attitudes that fail to respect the dignity of others. They are given opportunities to develop an understanding of their own culture and traditions and equally to acquire a growing appreciation of the positive contributions made by different groups in society. As children learn to understand and practise equality, justice and fairness in school situations they will be enabled to challenge prejudice and discrimination as they experience it in their own lives both now and in the future. In learning about Human Rights in SPHE, children are given opportunities to learn about their own culture and traditions and are encouraged to respect the rights and contributions of culturally diverse people and groups.

The PDST provides support for schools at primary level in this area through the provision of Stay Safe workshops, Child Protection seminars, and in-school bespoke SPHE support.

At Post-Primary level, although 'migrant integration' isn't specifically referenced in any of the NCCA SPHE syllabus/ guidelines or auxiliary resources, there is always a core focus on the importance of embracing difference and respecting others as part of the core values promoted in CPD for SPHE.

The SPHE Guidelines (p.9) [Link to SPHE Guidelines](#) emphasises the importance of developing a supportive school environment where people feel valued, self-esteem is fostered, respect, tolerance and fairness are evident, high expectations and standards are promoted, there is support for those with difficulties, open communication is the norm, effort is recognised and rewarded, uniqueness and difference are valued, conflict is handled constructively, initiative and creativity are encouraged and social, moral and civic values are promoted. Appreciating difference is a core element of the module 'belonging and integration' with the aim to help the students to recognise and value their own gifts and talents and those of others.

Additionally, one of the eight key themes of the Junior Cycle Framework is 'working with others' and within this, teachers aim to facilitate lessons that develop good relationships with others and in particular how to deal with conflict, cooperation with others, respecting difference and contributing to making the world a better place (p. 7). Within this key skill, students learn about group processes and how group membership can affect an individual's thinking and behaviour.

They develop greater empathy as they learn about other peoples' perspectives and develop skills for relating effectively to others.

Furthermore, within Strand 1 of the SPHE Specification outcome 1.8 and 1.9 focus on rights and responsibilities. 1.8 focuses on learning experiences that explain how stereotyping can contribute to a person's understanding and experience of rights and wellbeing. Learning outcome 1.9 supports students in appreciating the importance of respectful and inclusive behaviour in promoting a safe environment free from bias and discrimination. Woven across all strands is the importance of respectful communication, but this is referenced specially in Strand 2. Learning outcome 2.8 encourages students to use the skills of active listening and responding appropriately in a variety of contexts and outcome 2.9 supports students to use good communication skills to respond to criticism and conflict.

As exemplified above, espousing values of respect, tolerance, empathy, honesty, acceptance and openness underpins everything PDST promotes on CPD for SPHE, including embracing people from different cultures, religions, backgrounds and orientations. When PDST present workshops, seminars and provide in school support, these values are tightly woven into everything we do, whether it is modelling methodologies, engaging in dialogue or advising resources to name a few.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

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2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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